

Tahir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 April 2018 · WRIT - C No. 7184 of 2018 · **Writ disposed; objections to EE; recovery to abide that order.**

HEADNOTE

A recovery citation for alleged theft dues founded on a provisional assessment cannot be enforced until a final assessment is passed under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction to file objections before the Executive Engineer within ten days; recovery is to abide that order. Billing disputes under Clause 6.5, appeal under s.127, compounding under s.152 if an s.135 FIR exists, and instalments under the Code remain open.

FACTUAL SUMMARY

Tahir challenged a recovery citation dated 14 November 2017 calling on him to deposit Rs.61,473 as electricity dues said to arise from a provisional assessment for alleged electricity theft. The licensee produced a photostat of the provisional assessment order and a police-station complaint; no first information report was placed on record. On an earlier listing the Court had granted time for a supplementary affidavit on whether notice of the provisional-assessment proceedings had been given before the bill was finalised.

HOLDING-UNITS

INTERPLAY · EA2003::126

final assessment before recovery of provisional theft dues

HOLDING

Where a recovery citation is founded on a provisional assessment for alleged electricity theft, a final assessment order must be passed, following the prescribed procedure, before recovery under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005. If no final assessment has been passed, or it was passed without following that procedure, the consumer may file objections before the Executive Engineer, who must consider them and pass appropriate orders; other billing disputes lie before the same authority under Clause 6.5 of the 2005 Code. Recovery remains subject to that order, with appeal under s.127. ¶ 5-10

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A recovery citation for alleged theft dues founded on a provisional assessment cannot be enforced until a final assessment is passed under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.. ¶ 5-10

final-assessment-order-relegates-assessee-to-section-127-appeal A recovery citation for alleged theft dues founded on a provisional assessment cannot be enforced until a final assessment is passed under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.. ¶ 5-10

s126-procedural-strictness-notice-and-hearing A recovery citation for alleged theft dues founded on a provisional assessment cannot be enforced until a final assessment is passed under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005.. ¶ 5-10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER NOTICE OF THE PROVISIONAL-ASSESSMENT PROCEEDINGS WAS GIVEN BEFORE THE BILL WAS FINALISED

Raised on the 28 February 2018 listing; not determined on disposal.

NOT DECIDED — WHETHER AN FIR UNDER S.135 WAS REGISTERED, AND COMPOUNDING UNDER S.152

No FIR was produced; compounding left open if an FIR exists. ¶ 4

NOT DECIDED — MERITS OF THE RS.61,473 ASSESSMENT AND THE 14 NOVEMBER 2017 RECOVERY CITATION
¶ 8-9

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.